

		action brought against it.” (<i>Doe v. City of Los Angeles</i> (2007) 42 Cal. 4th 531, 550.) Defendant is sufficiently on notice as to the claim against it, and to the extent it disputes Plaintiff’s factual allegations, that dispute is not an issue that can be resolved at the pleading stage. Defendant also argues that the only communication systems Plaintiff specifically identifies in the FAC are outside the scope of Cal. Pen. Code § 632.7. Plaintiff alleges that Defendant “intentionally utilized certain computer hardware and/or software technology and/or other equipment (“Call Recording Technology”) to execute a company-wide policy and practice of recording inbound and outbound telephone communications with callers[.]” (FAC ¶ 13.) However, this allegation does not preclude the possibility that Defendant uses one of the enumerated telephonic communication devices identified in Cal. Pen. Code § 632.7 alongside this technology for recording purposes. Defendant also objects to Plaintiff’s allegations being based on information and belief, but “Plaintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true.” (<i>Pridonoff v. Balokovich</i> (1951) 36 Cal. 2d 788, 792.) Here, Plaintiff dialed a telephone number and spoke to a Boot Barn customer service representative. (FAC ¶ 12.) Those facts are sufficient to state on information and belief that “the customer service representative who answered his call was also using a Telephonic Communication System Device.” (<i>Id.</i> ¶ 16.) Based on the foregoing, the court overrules Defendant’s demurrer as the FAC adequately states a claim against Defendant for violation of Cal. Pen. Code § 632.7. Defendant is ordered to give notice of this ruling to Plaintiff.
11	30-2026-01566203 Figueiredo vs. Urth Caffé Corporation	Defendants Urth Caffé Corporation, Urth Payroll Services, Inc., Urth Caffé Associates VIII, LLC, Urth Old Towne Development, LLC, Urth Caffé Associates VII, LLC, Urth Caffé Associates IX, LLC, Urth Caffé Associates X, LLC, Urth Expansion Holdings, LLC, and Alfredo Garcia’s motion to compel arbitration is GRANTED. Plaintiff Anabelle Figueiredo is ordered to arbitrate her individual claims. The class claims are dismissed without prejudice. This case is otherwise STAYED pending completion of arbitration.

		An ADR Review Hearing is scheduled for April 13, 2027 at 9:00 a.m. The parties must file a Joint Status Report at least 7 court days before the hearing and may request a continuance if arbitration is not yet complete. Code of Civil Procedure § 1290.6 Defendants have styled the motion as a “Verified Petition to Compel Arbitration” pursuant to Code of Civil Procedure Section 1290.6. ROA 26, 37. The parties dispute whether this changes otherwise applicable motion deadlines. It does not. Section 1290.6 appears in portions of the Code of Civil Procedure pertaining to a “proceeding” to compel arbitration, which is “commenced by filing a petition” to compel arbitration. C.C.P. § 1290; <i>accord Mercury Insurance Group v. Superior Court</i> (1998) 19 Cal.4th 332, 349. The instant motion was not filed to commence a proceeding to compel arbitration, but in an action that was already pending. Accordingly, Section 1290.6 is inapplicable. Furthermore, even if Section 1290.6 applied, the court is within its discretion to (and here would) consider any “untimely” opposition. <i>See, e.g., Correia v. NB Baker Electric, Inc.</i> (2019) 32 Cal.App.5th 602. Existence of Arbitration Agreement The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. <i>Id.</i>; <i>Perry v. Thomas</i> (1987) 482 U.S. 483, 492 n.9 (State law applicable to contracts generally governs whether a valid arbitration agreement exists.) While the burden of persuasion is always on the moving party, the burden of production may shift in a three-step process. First, the moving party must present “prima facie evidence of a written agreement to arbitrate the controversy”, which is satisfied by attaching a copy of the arbitration agreement purporting to bear the opposing party's signature. <i>Gamboa v. Ne. Cmty. Clinic</i> (2021) 72 Cal.App.5th 158, 164–67. At this step, a movant need not follow the normal procedures of document authentication. <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218-219.
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	If the moving party meets its initial burden, and the opposing party disputes the agreement, then the burden shifts to the opposing party to challenge the authenticity of the agreement. Finally, if plaintiff presents evidence that no agreement exists, the burden shifts back to the moving party to present admissible evidence of a valid arbitration agreement between the parties by a preponderance of the evidence. <i>Gamboa, supra</i>, 72 Cal.App.5th at 164–67. Here, the “Mutual Agreement to Arbitrate Claims and Disputes” (the “Agreement”) is presented as Exhibit 1 to the declaration of Gabii Vera, Vice President of Operations and Compliance for defendant Urth Payroll Services, Inc. dba Urth Caffè. ROA 38 Ex. 1. Plaintiff electronically signed the Agreement on 06-06-2024. <i>Id.</i> Vera and Robert Dubrey, IT Director for defendant Urth Payroll Services, Inc. dba Urth Caffè, both explain the process by which plaintiff’s electronic signature came to be attached to the Agreement. ROA 38. This is sufficient to meet defendants’ initial burden that an agreement to arbitrate exists. Plaintiff admits she signed the Agreement. ROA 42. However, plaintiff argues that no agreement to arbitrate was formed between plaintiff and defendants Urth Caffè Corporation, Urth Caffè Associates VIII, LLC, Urth Old Towne Development, LLC, Urth Caffè Associates VII, LLC, Urth Caffè Associates IX, LLC, Urth Caffè Associates X, LLC, Urth Expansion Holdings, LLC, and Alfredo Garcia because the Agreement is between plaintiff and defendant Urth Payroll Services, Inc. only. In other words, plaintiff argues no other defendant may enforce the Agreement. For the reasons explained below, this argument lacks merit. “Generally speaking, one must be a party to an arbitration agreement to be bound by it or invoke it.” <i>Molecular Analytical Systems v. Ciphergen Biosystems, Inc.</i> (2010) 186 Cal.App.4th 696, 706. However, there are exceptions to this general rule, which include: “(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary.” <i>Cohen v. TNP 2008 Participating Notes Program, LLC</i> (2019) 31 Cal.App.5th 840, 859. As an initial matter, plaintiff’s interpretation ignores the express language of the preamble of the Agreement, which is between the “Employee” and “Urth Payroll Services, Inc. and all related entities (‘Employer’).” ROA 38 Ex. 1 at 1. Additionally, the
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	interpretation ignores the third paragraph of the Agreement, which states it applies to all employment-related disputes between the employee and “Employer, including the Employer’s parent, subsidiary or related companies, and their past, present, and future owners, officers, directors, agents, employees, partners, clients, customers, pension or benefit plans, administrators, advisors, (including any financial advisors, attorneys, and accountants), insurers, and indemnitees parent(s), subsidiaries, affiliates, and successors (collectively, ‘Employer’).” <i>Id.</i> Accordingly, pursuant to the express terms of the Agreement, it may be enforced against plaintiff, who has alleged violations suffered during her employment, by entities and individuals related to Urth Payroll Services, Inc., including defendants Urth Caffe Corporation, Urth Caffe Associates VIII, LLC, Urth Old Towne Development, LLC, Urth Caffe Associates VII, LLC, Urth Caffe Associates IX, LLC, Urth Caffe Associates X, LLC, Urth Expansion Holdings, LLC, and Alfredo Garcia. Contrary to plaintiff’s arguments, there is nothing inconsistent, ambiguous, or “illusory” about the Agreement’s definition of “Employer” and no authority suggests otherwise. Finding the Agreement’s express terms permit enforcement by non-signatory defendants, the court need not address defendants’ other theories of enforcement. However, even if the terms of the Agreement did not expressly include related entities and individuals, because plaintiff alleges defendants were joint employers (ROA 2 ¶¶ 25, 28-34), does not differentiate among defendants, and alleges joint liability against all defendants, equitable estoppel permits enforcement by non-signatory defendants. <i>See, e.g., Garcia v. Pexco, LLC</i> (2017) 11 Cal. App. 5th 782, 786 (doctrine applies where the claims are “based on the same facts and are inherently inseparable”). The <i>Garcia</i> court noted that, as here, Garcia’s complaint alleged violations against the defendants as joint employers, referred to employers collectively as “defendants” without distinction, and alleged identical claims and conduct regarding unlawful and improper acts. <i>Id.</i> at 788. As the court in <i>Gonzalez v. Nowhere Beverly Hills LLC</i> (2024) 107 Cal.App.5th 111 held in a similar situation wherein plaintiff sued several related entities though employed by only one, “it would be unfair for [plaintiff] to group the...entities...for purposes of wage and hour liability as joint employers while at the same time denying the joint relationship in order to avoid arbitration.” <i>Id.</i> at 124. Accordingly, the court finds the parties formed an agreement to arbitrate.
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		Applicability of the Federal Arbitration Act The Agreement expressly provides it is “governed by and enforceable under the Federal Arbitration Act (‘FAA’).” ROA 38 Ex. 1 at 4. Additionally, defendants provide evidence they are engaged in interstate commerce through their suppliers. Vera Decl. ¶ 3. This is more than sufficient to find the FAA applies and plaintiff does not dispute the application of the FAA. Accordingly, the court finds the FAA applies. Whether the Agreement Covers the Dispute The Agreement broadly applies to “all disputes that may arise out of the employment context.” ROA 38 Ex. 1 at 1. The Agreement contains a “Waiver of Class Claims,” wherein the “Parties agree to bring any claim in arbitration on an individual basis only. The Parties further agree to waive the right to bring, maintain, or participate in any class, representative or collective proceeding, as allowed by law, whether in arbitration or otherwise.” <i>Id.</i> at 2. The Agreement also contains a severability provision providing for enforcement of all other provisions in the event any are deemed unenforceable. <i>Id.</i> at 4. There is no dispute the Agreement applies to the claims alleged by plaintiff. Unconscionability In <i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, “‘generally applicable contract defenses, such as . . . unconscionability, may be applied to invalidate arbitration agreements without contravening’ the FAA’ or California law.” <i>Id.</i> at 125; accord <i>AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 339. “Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion. [Citation.] ‘The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’ [Citation.] If the contract is adhesive, the court must then determine whether ‘other factors are present which, under established legal rules—legislative or judicial—
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	operate to render it [unenforceable].” <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 113. 113. To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. <i>Baltazar v. Forever 21, Inc.</i> (2016) 62 Cal.4th 1237, 1243; <i>see also OTO, L.L.C., supra</i>, 8 Cal.5th at 129-30. “[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” <i>Armendariz, supra</i>, 24 Cal.4th at 114. Plaintiff bears the burden to demonstrate that the arbitration agreement is procedurally and substantively unconscionable. <i>Sanchez v. Carmax Auto Superstores California, LLC</i> (2014) 224 Cal.App.4th 398, 402. <u>Procedural Unconscionability</u> Defendants concede the Agreement is a contract of adhesion. However, while it is true virtually all “take it or leave it” contracts carry some degree of procedural unconscionability, that degree is presumptively low absent evidence the defendant actively interfered with plaintiff’s ability to review and understand the arbitration clause. <i>See Samaniego v. Empire Today, LLC</i> (2012) 205 Cal.App.4th 1138, 1145 (procedural unconscionability presumptively low absent evidence the defendant actively interfered with plaintiff’s ability to review and understand the arbitration clause). Accordingly, the evidence, at most, demonstrates a low amount of procedural unconscionability based on the adhesive nature of the Agreement. <u>Substantive Unconscionability</u> Substantive unconscionability examines the fairness of a contract’s terms to ensure that a contract of adhesion does not impose terms that are overly harsh, unduly oppressive, or unfairly one-sided. <i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, 129-30. The court focuses on terms that unreasonably favor the more powerful party, impair the integrity of the bargaining process, contravene public interest or policy, or attempt to impermissibly alter fundamental legal duties. This includes unreasonable or harsh
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	terms or ones that undermine the non-drafting party’s reasonable expectations. <i>Id.</i> at 130. First, plaintiff argues the Agreement is substantively unconscionable based on a lack of adequate discovery, specifically, the limitation of one individual deposition per side. ROA 38 Ex. 1 at 3 (“Each party shall have the right to take the deposition of one individual and any expert witness designated by another party without the Arbitrator’s prior approval.”). However, the Agreement also provides that “[r]equests for additional depositions or discovery may be made to the arbitrator selected pursuant to this Agreement. The arbitrator shall grant additional depositions or discovery if the arbitrator finds the party has demonstrated it needs that deposition/discovery to adequately arbitrate the claim, considering the parties’ mutual desire to have a speedy, less-formal, cost-effective dispute-resolution mechanism.” <i>Id.</i> Plaintiff provides no authority the Agreement’s discovery provision fails to meet minimum standards under <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83. Moreover, an arbitrator’s discretion as to the scope of discovery is not unconscionable. The JAMS Employment Arbitration Rules & Procedures that expressly apply to the Agreement, Rule 17(b), provides for the arbitrator’s discretion to determine whether additional discovery is reasonably necessary. The California Supreme Court has found a similar provision giving ultimate deference to the arbitrator to order additional discovery as needed renders the discovery limitation valid and “eliminates any unconscionability.” <i>Ramirez v. Charter Communications, Inc.</i> (2024) 16 Cal. 5th 478, 507. Plaintiff’s reliance on <i>Fitz v. NCR Corp.</i> (2004) 118 Cal. App. 4th 702 is misplaced. In that case, additional discovery was only available upon, unlike here, a showing of “compelling need,” which required a showing that fair resolution of the dispute would be “impossible” without the additional discovery. <i>Id.</i> at 709. Significantly, adequate discovery in arbitration does not equal unfettered discovery, and parties may agree to something less than what is available under the Code of Civil Procedure. <i>Sanchez v. Carmax Auto Superstores Cal, LLC</i> (2014) 224 Cal.App.4th 398, 404 (citing <i>Armendariz v. Foundation Health Psycare Servs., Inc.</i> (2000) 24 Cal.4th 83, 105-060). “[A]rbitration is meant to be a streamlined procedure. Limitations on discovery...is one of the ways streamlining is achieved.” <i>Dotson v. Amgen, Inc.</i> (2010) 181 Cal.App.4th 975, 983. “In
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	striking the appropriate balance between the desired simplicity of limited discovery and an employee’s statutory rights, courts assess the amount of default discovery permitted under the arbitration agreement, the standard for obtaining additional discovery, and whether the plaintiffs have demonstrated that discovery limitations will prevent them from adequately arbitrating their statutory claims.” <i>De Leon v. Pinnacle Property Management Services, LLC</i> (2021) 72 Cal.App.5th 476, 487. Plaintiff has made no such demonstration here. Second, Plaintiff argues the Agreement is substantively unconscionable because it requires employees to arbitrate “harassment” claims, which includes sexual harassment claims. As an initial matter, plaintiff is correct the law does not permit forced arbitration of sexual harassment or assault disputes. The Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (“EFAA”), 9 U.S.C. § 402(a) provides that “at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” However, plaintiff’s argument lacks merit for two reasons. First, among the other claims covered by the Agreement, employees must arbitrate “harassment” claims. ROA 38 Ex. 1 at 1. However, the Agreement includes the limitation that the covered claims are arbitrable only “to the full extent permitted by law.” <i>Id.</i> As sexual harassment claims cannot be forced into arbitration, the Agreement’s language excludes such claims or such claims are arbitrable at the election of a plaintiff. Second, the EFAA expressly applies to cases “alleging conduct constituting a sexual harassment dispute or sexual assault dispute... and relates to the sexual assault dispute or the sexual harassment dispute.” 9 U.S.C. § 402(a). This case neither contains nor relates to sexual harassment and the statute is thus inapplicable. Plaintiff provides no authority even suggesting otherwise. Finally, Plaintiff argues the Agreement “lacks any semblance of bilaterality” based on its class action waiver because, unlike an employee, the employer is unlikely to bring a class action. This argument lacks merit for two reasons. First, the waiver expressly
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		applies with equal force to the claims of both employer and employee, so there is no lack of mutuality. ROA 38 Ex. 1 at 2. Second, it is well settled that class action waivers are enforceable, as here, in arbitration agreements governed by the FAA. <i>Epic Systems Corp. v. Lewis</i> (2018) 138 S. Ct. 1612, 1616; <i>Iskanian v. CLS Transportation Los Angeles, LLC</i> (2014) 59 Cal. 4th 348, 364. Contrary to plaintiff’s assertion, under the FAA, when an arbitration agreement does not authorize class arbitration of disputes, case law provides for the dismissal without prejudice of the class claims. <i>Epic Systems Corp. v. Lewis</i> (2018) 138 S.Ct. 1612; <i>Stolt-Nielsen S.A. v. AnimalFeeds Int’l Corp.</i> (2010) 559 U.S. 662, 686; <i>Kinecta Alternative Financial Solutions, Inc. v. Superior Court</i> (2012) 205 Cal.App.4th 506, 510-511. Both the FAA and California law provide for a stay of proceedings pending arbitration. 9 U.S.C. § 3; Code Civ. Proc., § 1281.4. Accordingly, because the court does not find the Agreement substantively unconscionable, the Agreement is enforceable without regard to the negligible amount of procedural unconscionability and the petition is granted. Moving party is ordered to give notice of this ruling.
12	30-2022-01298406 Clevenger vs. Welch Foods Inc	Defendant Welch Foods Inc.’s (“Defendant” or “Welch”) Motion for Summary Judgment is DENIED. The court SUSTAINS Plaintiff’s Objection No. 12 to the declaration of Matthew Aufman, Vice President, General Counsel and Secretary of Welch, with respect to his improper legal opinion that “PIM is not an agent of Welch’s.” (Aufman Dec. ¶ 22.) The court OVERRULES Plaintiffs’ remaining objections Aufman Declaration as his statements are admissible and Plaintiffs essentially dispute the merits of his claims. <u>Standards of Law</u> “A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (CCP § 437c(a)(1).) “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (CCP § 437c(c).) “[S]ummary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other